

SENATE No. 404

The Commonwealth of Massachusetts

PRESENTED BY:

Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to supporting survivors of child sexual abuse.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joan B. Lovely</i>	<i>Second Essex</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>6/30/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>11/24/2025</i>

SENATE No. 404

By Ms. Lovely, a petition (accompanied by bill, Senate, No. 404) of Joan B. Lovely and John F. Keenan for legislation relative to supporting survivors of child sexual abuse. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 313 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to supporting survivors of child sexual abuse.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 85V of said chapter 231 is hereby amended by inserting after clause
2 (iii) the following clause:-

3 (iv) a civil action for sexual abuse of a minor, as that term is defined in section 4C½ of
4 chapter 260.

5 SECTION 2. Section 85W of said chapter 231 is hereby amended by inserting after the
6 word “automobile”, in line 20, the following words:-

7 or in a civil action for sexual abuse of a minor, as that term is defined in section 4C½ of
8 chapter 260

SECTION 3. Subsection (j) of section 10 of chapter 258 of the General Laws, as appearing in the 2016 Official Edition, is hereby amended by inserting after paragraph (4), the following paragraph:-

(5) any claim by or on behalf of a person who alleges that he was sexually abused as a child, as that term is defined in section 4C of chapter 260.

SECTION 4. Section 2 of chapter 258C of the General Laws, as appearing in the 2016 Official Edition, is hereby amended by inserting after subsection (b), the following subsection:-

(b1) In the case of a claimant who was sexually abused as a minor, such good cause shall include the report of a duly licensed mental health professional stating an opinion that the claimant did not make the connection between the sexual abuse and the harm suffered by the claimant at the time the abuse occurred, and that claimant's failure to make the connection was consistent with the typical responses by such victims of childhood sexual abuse.

SECTION 5. Subsection (a) of section 5 of said chapter 258C is hereby amended by inserting after section paragraph (1) the following paragraph:-

(1A) In the case of a claimant who was sexually abused as a minor, said three years shall commence to run when the claimant first makes the connection between the sexual abuse and the harm suffered by the claimant as a result. The report of a duly licensed mental health professional stating an opinion as to the date when the claimant first made the connection between the sexual abuse and the harm suffered by the claimant, and that the claimant's failure to make the connection prior to that date was consistent with the typical responses by such victims of childhood sexual abuse, shall be prima facie evidence in all proceedings under this chapter.